CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
May 26, 2010
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:00 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Rose Tydus, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, City Attorney Joseph L. Geller and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Clerk Irby advised that agenda item 16-5 under the consent agenda requires a public hearing and would be moved to agenda item 15A3 (resolutions/public hearing).

Manager Patterson deferred agenda item 15A2 (first reading ordinance).

Commissioner Johnson pulled agenda items 16-1, 16-7, 16-13; Vice Mayor Taylor pulled agenda item 16-12; Commissioner Holmes pulled agenda items 16-3 and 16-6; and Mayor Kelley pulled agenda item 16-8.

Commissioner Holmes said he was under the impression that the City Attorney had prepared a resolution for a proposed charter amendment on Section 38 of the Charter.

Attorney Geller advised that he'd received from the City Clerk's Office three (3) charter amendments from the Charter Review Board and those are the three (3) he prepared.

Commissioner Holmes reminded Attorney Geller that he mentioned the proposed charter amendment during a meeting in his (Holmes) office in addition to it being discussed on the dais at a previous meeting.

Attorney Geller apologized to Commissioner Holmes and said he would get with him on the proposed charter amendment reference section 38 of the charter.

In addition to that, Commissioner Holmes stated that he also requested an ordinance prohibiting jet skis.

Attorney Geller advised that he did some research and there's apparently something the county has and the city doesn't need a separate ordinance because it's just a question of enforcing it. He said he would follow up with the police department to make sure they enforce what's there.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Regular Commission Meeting – 05/12/2010

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Regular Commission Meeting of May 12, 2010.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner, Community Liaison for County Commissioner Barbara Jordan (District 1) came forward and provided an update on the city's request for technical support.

After visiting Miami-Dade Transit regarding the donation of buses to the city, Commissioner Johnson said it was her understanding there was an error in the communication in terms of the city needing a low rider bus. Ultimately it should be up to the City Manager, but the city is most appreciative of those vehicles.

10. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

Chief James Koch of Miami-Dade Fire Rescue came forward to address any questions and/or concerns.

Mayor Kelley requested information regarding the CERT training.

Chief Koch said he didn't have information on the CERT program but he would follow up on it.

11. PUBLIC PRESENTATION:

1. Jonathan Salas, Site Coordinator
Weed and Seed

Jonathan Salas, Site Coordinator of the Weed and Seed came forward and briefly introduced himself. He proceeded with providing an update on the events and upcoming summer youth program as a part of Weed and Seed. He invited everyone to attend the Steering Committee Meeting which meets on the 2nd Tuesday of every month @ 7:30 p.m. in the DCF building.

Commissioner Johnson suggested to the City Manager that the city get the information out in terms of what Weed and Seed is doing for the community via OpaTV and the city's media person.

2. Alex Garcia
Latin Flavors

Alex Garcia of Latin Flavors came forward and advised that he originally requested to be placed on the agenda regarding the calculation of sewage; however, that issue was resolved. As a small business owner in the City of Opa-locka, he said he was proud to be in the city.

Mayor Kelley welcomed Mr. Garcia to the City of Opa-locka.

11a. CITIZENS' FORUM:

1. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, came forward and expressed his disappointment with agenda item 16-3 to ban tinted windows on all city vehicles. He suggested that the city come up with a better way to track employees driving the city vehicles than to ban tinted windows on city vehicles because of the hot whether. He reminded the Commission that the resolution addresses all city vehicles; therefore, their city vehicles would be included in this resolution as well. The resolution provides that the Opa-locka Police Department is excluded for the ban on tinted windows which is unfair because it should apply to all employees.

He suggested that the Commission reconsider the resolution.

He further thanked the Mayor for the Boards & Committees Appreciation Banquet which the city will start having again.

2. Eldred Redmon of 2766 NW 131st Street, Opa-locka, Florida appeared before the City Commission and expressed his frustration relating to the ongoing situation at Villa Francine. He advised that the City Attorney should have received a notice of intent to bring suit under F.S. 768.28 and the city will now become a party to that lawsuit.

Commissioner Holmes recalled when the residents from Villa Francine last came before the City Commission. He repeated what he had stated to the group back then that they get in contact with him (Holmes) but no one has yet to contact him.

3. Tony Brown of 2762 NW 131st Street, Opa-locka, Florida, appeared before the City Commission and stated that he too is from the Villa Francine community and had been coming to the city for approximately three (3) years. He said he'd been following up and researching the DERM public records file to find out what new information is being brought to the table. He was told by individuals that the city was supposedly filing a lawsuit against the developer and after checking the DERM public files he didn't see any lawsuit in there other than his lawsuit. It's a shame that the city has allowed the developers to come into the city, build this townhouse community on the contaminated soil which has put everyone at risk. Miami-Dade County is the only other entity other than the homeowners suing the developer and the city should have been on board a long time ago. The residents should not have to call the commissioner after they have been coming to them for the past three years.

4. Pastor Celeste Fitzpatrick of 2523 Opa-locka Boulevard, Apt. 241, Opa-locka, Florida appeared before the City Commission as a new resident of the City of Opa-locka to encourage preparation of its residents for the worst hurricane season ever. She continued by expressing her concerns relating to the poor management of the senior facility in which she resides which included safety hazards.

Mayor Kelley directed the City Manager to have staff from Code Enforcement address the issue.

5. Al Ferguson of 13400 NW 28th Avenue, Opa-locka, Florida, came forward and spoke on behalf of Grace Academy International and the positive impact the school has on the community. He spoke with regards to Agenda Item 15A1 (ordinance providing for

schools) which would allow for bigger school developments coming into the city affecting the smaller existing schools.

6. Claude Thomas of 13400 NW 28th Avenue, Opa-locka, Florida, appeared before the City Commission as a teacher of Grace Academy International which has created a great impact on the students in the community. He said it would be tragic if the school wasn't able to continue operating at that location anymore.

7. Chantel Ferguson of Grace Academy International located at 13400 NW 28th Avenue, Opa-locka, Florida came forward and stated that the school would be closing due to the property being purchased by developers to build a bigger facility for a charter school. She said that the school would like to remain in Opa-locka and develop the community to bring about a change not only in the lives of the children but families as well.

Commissioner Johnson asked, is the building being sold and a developer is purchasing the building? She continued to ask, in previous discussions, isn't this the same building for a Charter School?

Ms. Ferguson replied, yes.

8. Anthony Cruz of 2001 NW 155th Street, Miami Gardens, Florida came forward as a parent whose daughter attends Grace Academy International and spoke in favor of the school as a result of her academic improvement while attending the school.

After hearing the concerns relating to Grace Academy International, Commissioner Holmes stated that there's nothing much the city can do if a developer is purchasing the property for development of charter school. However, the city can provide support in the case should Grace Academy International want to purchase the property. He suggested that the school contact him so that he can get more information and find out what is really going on.

9. Martavia Promise of 2860 NW 135th Street, Apt. 101, Opa-locka, Florida, came forward as a student and spoke on behalf of Grace Academy International.

10. Ms. Prince of 13122 Port Said Road, Apt. 247, Opa-locka, Florida, appeared before the City Commission and expressed her support of Grace Academy International as a parent whose child attends the school and has shown significant improvement as a result.

11. Mr. Goodman of 13300 Alexandria Drive, Opa-locka, Florida, came forward and stated that he is the parent of two sons who attend Grace Academy International. Since their attendance at Grace Academy, they have improved their overall grades. Although he understood what Commissioner Holmes stated with regards to the city not having any authority; however, if the city speaks with the developer or owner perhaps something could be done. In addition to that, the city could possibly assist Grace Academy International with purchasing the building.

He further stated that to lose a school of this magnitude would be a great lost to the community.

Mr. Goodman indicated that with regards to the property at 13300 Alexandria Drive, that property has been re-acquired by Mr. Chamon and they would be going into the building to bring it back up to date. The plans are to have only registered voters on that property.

12. Ulyss Eason of 1341 Peri Street, Opa-locka, Florida; Shereka Ashley of Lauderhill, Florida; and Joanna Supriano of 18351 NW 37th Avenue, Miami Gardens, Florida came forward on behalf of Community Crusade Against Drugs located 1031 Ives Dairy Road, Miami, Florida and spoke with regards to the after school program at the 22nd Avenue Apartments (13875 NW 22nd Avenue, Opa-locka, FL). As a non-profit organization providing leisure activities for the youth in Miami Gardens and Opa-locka, they requested that the city partner with them to provide space to continue to provide activities for the youth in the Opa-locka area.

Commissioner Holmes stated that this is the group that performed during the Moon over Magnolia event. Following the event, Ms. Vicki Antonio approached him regarding space to provide activities and therefore he requested that they come before the City Commission with their request.

Commissioner Johnson asked, what happened to the space at the 22nd Avenue Apartments?

Ms. Eason stated that the program has expanded, and in addition to that there was a murder on site and the families are afraid. She said she would like to take the children off campus to continue to receive the services and feel safer.

Commissioner Johnson stated that the space at the 22nd Avenue Apartments was originally for her program and she gave that space up for Community Crusade Against Drugs; therefore, the program has space but they just want to expand.

Ms. Eason agreed that they have space at the 22nd Avenue Apartments; however, they would like to expand to a safer location.

Mayor Kelley stated that he keeps hearing "safer" and he would like to get to a point where those kids could feel safe at that location without taking them out. However, if the program wants to expand then that's fine too. He said he didn't think it was a great idea to take the kids out of that location all together because if that's the case then the City Manager has to find a way to make it safer. Those kids should be able to enjoy the complex without having to take them out.

He continued by saying that he thought the police department was working on something with the owners of that property for that very purpose. Now he's hearing that the families don't feel safe, so obviously what they're doing isn't working. He directed the City Manager to follow up on the plan from the police department for making that area safe for the children to enjoy on site while his colleague tries to find additional space for expansion of the program.

Due to the different types of enrichment activities taking place at the 22nd Avenue Apartments, Ms. Ashley said that the issue was not only about being safe but the lack of space as well because they have to constantly move tables and chairs to accommodate the various activities.

Mayor Kelley understood the issue with the lack of space, but in the meantime everyone should feel safe because the police department was working on a plan which he directed the City Manager to follow up on.

Commissioner Johnson suggested that the program check with the churches in the area for partnerships until Commissioner Holmes work out the additional space.

12. ACTION ITEMS (items from consent agenda pull list):

Commissioner Johnson deferred agenda item 16-3 relating to the ban on tinted windows.

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DIRECT THE CITY MANAGER TO CREATE A GUIDE ON HOW TO DO BUSINESS WITH THE CITY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson asked for clarification as to how vendors would be held accountable?

Mayor Kelley explained that he often hears from individuals in the business community especially small business individuals is that they don't really know how to engage the city to try to get work or contracts, etc. In looking at other cities, they have a guide on how to do business so he sponsored the resolution to allow the City Manager to come up with a guide. The only thing that is not mentioned in the resolution is for the City Commission to approve the guide.

He directed the City Attorney to put language in the resolution so that the guide comes back to the City Commission for approval.

Commissioner Johnson agreed with the resolution but also wanted the guide to come back to the City Commission for approval due to her concerns in the city's procurement process.

Attorney Geller suggested that the resolution at the end of Section 2 is amended to include the words "subject to approval by the City Commission".

Vice Mayor Taylor expressed her concern about not seeing Mr. Geller's signature for legal sufficiency on the resolution because her book didn't have page two of the resolution.

Attorney Geller advised that he had the signature page in his commission agenda.

Mayor Kelley stated that it may have been a clerk oversight because the agendas packets provided to the Commission didn't include the 2nd page of the resolution.

Attorney Geller stated for the record that he has signed the resolution for legal sufficiency.

Commissioner Tydus stated that she is in support of the resolution and it is a guide that is needed. This guide should be included on the city's website.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend Section 2 of the resolution by adding "subject to approval by the City Commission".

There being no discussion, the amendment passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO CLOSE CERTAIN ROADS ON SATURDAY, JUNE 26, 2010 FROM 2:00 P.M. TO 7:00 P.M. FOR THE JAZZ CAFÉ AND GRILLE FATHER'S DAY CELEBRATION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDNG FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

Commissioner Holmes requested that the date is changed from June 26, 2010 to July 4, 2010 in celebration of Independence Day.

Vice Mayor Taylor asked, were the bus routes considered in the closing of roads?

Commissioner Holmes replied, yes.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to amend the resolution to change Saturday, June 26, 2010 Father's Day Celebration to Sunday, July 4, 2010 Independence Day Celebration in both the title and body of the document.

There being no discussion, the amendment passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO A MEMORANDUM OF UNDERSTANDING (MOU) WITH CREATIVE SUBSTAINABLE SOLUTIONS, LLC, CREATING A PARTNERSHIP TO REDUCE GREENHOUSE GASES THROUGH THE IMPLEMENTATION OF THE "DOWN TO EARTH" GLOBAL SUSTAINABILITY INITIATIVE AGREEMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDNG FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson abstained from voting on the above resolution since she had done the sweat equity.

Commissioner Johnson withdrew her motion and Commissioner Holmes withdrew his seconded. She proceeded to step out of the room.

The above resolution was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to pass the above resolution.

Vice Mayor Taylor asked for clarification whether Sustainable Solutions, LLC would be raising their own money and the city would be reaping the benefits of what they are doing?

Manager Patterson replied that is correct.

Mayor Kelley commended Commissioner Johnson for doing the sweat equity so the city would not have a cost. This language is included in the wording of the resolution.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Johnson	Abstain
Commissioner Holmes	Yes
Mayor Kelley	Yes

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PREPARE AND ISSUE A REQUEST FOR PROPOSALS (RFP) FOR THE REPAIR AND REBUILDING OF PUMP STATIONS #8, #11A, AND #11B, IN A FORM ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

Mayor Kelley expressed his concerns relating to the language in the resolution with refers to an RFP and the language in the supporting documentation which refers to an ITB. He asked, would the city be issuing a Request for Proposal or an Invitation to Bid? He said he was not in favor of Invitation to Bids based on past experience with the Sherbondy Park project.

Manager Patterson advised that this would be a Request for Proposals (RFP).

Commissioner Johnson asked, can the Commission make a motion for an amendment to address this issue?

Attorney Geller advised that the Commission is voting on the resolution.

Vice Mayor Taylor and Mayor Kelley stated that the resolution was good.

Although the resolution reflects RFP, Commissioner Johnson said the supporting documentation that becomes public record does not reflect the change. She made a motion on the amendment to make the correction to the supporting documentation.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes for the supporting documentation to be amended to conform to the language of the resolution so there's one set of documents.

There being no discussion on the amendment, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

12. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, REQUESTING APPROVAL TO AUTHORIZE THE CITY MANAGER TO AWARD A CONTRACT TO HORIZON BUILDERS IN THE AMOUNT OF TWO HUNDRED AND TWENTY SEVEN THOUSAND FIVE HUNDRED AND TWENTY NINE DOLLARS ($227,529.00) FOR THE DESIGN AND CONSTRUCTION OF ALI-BABA AVENUE ROADWAY IMPROVEMENTS, PAYABLE FROM ACCOUNT NO. 44-814817; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Holmes to pass the above resolution.

Vice Mayor Taylor asked, what happened to Unitech Builders who bided on the project three times, attended the mandatory meeting and now they are out of the game? Although she had no interest in the company, she said she wanted to know because the city received more than one letter stating that they had to follow the guidelines, then to put the project out for bid again as if the city didn't want them.

Manager Patterson explained that Unitech Builders bided on the project three times but in the final RFP, they were not the lowest responsible bidder.

Vice Mayor Taylor said that it was her understanding Unitech Builders was the only bidder the first two times this project went out for bid.

Manager Patterson replied, that is correct; however, this project was larger and the scope had to be reduced because the bid came in higher than the amount of money allocated for this project.

Vice Mayor Taylor recalled a letter submitted by Unitech stating that they were willing to negotiate the cost of the project after the city had downsized the scope. The letter also stated that since they were out of the ballpark, they had nothing to go by but the city still neglected to negotiate with them although they were willing to negotiate down. The city ignored them and put the bid out again.

Manager Patterson said that if a project is put out to bid, it has to be bided and cannot be negotiated.

Vice Mayor Taylor expressed her concern relating to the fact that this company didn't get any consideration.

Manager Patterson reminded the Commission that this project is tied to monies from the Department of Transportation and the requirement is that this project is put out for bid. The company in question was not the lowest bidder the third time around and the city cannot negotiate a bid process.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	No
Mayor Kelley	Yes

13. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE EMPLOYEE PAY SCHEDULE PLAN FOR FY 2009-2010, IN SUBSTANTIALLY THE FORM ATTACHED HERETO; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson expressed her concern relating to the document not having an account number which is the normal process. She asked, what is the plan of action to go back to those individuals making sure they are in the pay schedule as presented?

Guithele Ruiz-Nicolas, Human Resources Director for the City of Opa-locka came forward and stated that every city employee is within the range. Currently there is no employee outside of the minimum or the maximum except one; therefore, every employee is within the range with a little room to grow.

Commissioner Johnson asked, what is the plan for those employees who may have been acting in a position, received a salary at a certain amount but their performing in a different classification?

Mrs. Ruiz-Nicolas advised that all of those had been corrected.

Commissioner Johnson asked, is everybody now in the correct pay status according to their job titles? She continued by asking, what is the process going forward for evaluations to make sure of the salary reflected in the pay schedule?

Mrs. Ruiz-Nicolas indicated that she would be working with the budget administrator as well as the City Manager before any position is approved for the year 2010-2011. They would look at the pay classification plan and if there's a new position created by then it would be in classification and be brought back to the Commission for approval. This would be a consistent process aligned with the budget process.

Vice Mayor Taylor asked for further clarification as to what was stated by Mrs. Ruiz Nicolas relating to the minimum and maximum.

Mrs. Ruiz-Nicolas reiterated that the city currently has no one beyond the maximum and no one lower the minimum. In her memorandum, she stated that she'd added three (3) extra steps to ensure there is room to grow and no one goes beyond that max.

Vice Mayor Taylor asked, is there a latter percentage when an employee receives an excellent evaluation?

Mrs. Ruiz-Nicolas advised that she was not familiar with the city's system of payful performance. The city just gave all employees a 3% COLA so she imagined that was done in the past but as she gets further into her assessment of the different functions that is something she would address.

In terms of evaluation, Mayor Kelley stated that employees should get an evaluation whether they're getting any money or not. This has been one of the great challenges in this city where employees are not evaluated. The second part of that would be as a part of the budget where the Commission may put in the line item and that goes back to what the Vice Mayor was saying if they get excellent if there's no money budgeted then the employee will get a congratulations.

He continued by saying that would be something the City Manager would have to include in the line item for increases based on evaluations which is a budgetary issue.

Manager Patterson explained that if an employee is at the maximum of the pay plan then the employee would get the card and a hand shake; however, if there's room to grow under the pay plan those steps are approximately 5% and if an employee gets a satisfactory performance evaluation then they will move that 5%. Once the pay plan is maxed out then there's nothing left after maximum but a longevity.

Mayor Kelley stated that it was just stated on the record that no employee is maxed out and even if the employee gets satisfactory which equals to 3%; the only way the employee will get that 3% is if money is allocated in the budget for that purpose. Therefore, this is really a budgetary item that would come up during the budget process. He concern is that all employees must receive an evaluation regardless but it will be determined by this Commission what they would receive in terms of compensation based on that evaluation.

Both Manager Patterson and Mrs. Ruiz-Nicolas stated that Mayor Kelley was correct.

Vice Mayor Taylor asked, so right now there's nothing in the budget for the increase based on employee evaluations?

Mrs. Ruiz-Nicolas advised that she had not seen any of that information neither the contract requiring for any of that.

Mayor Kelley said there would be no contract; it would be money allocated in the budget for that increase based on the evaluation of employees. He said that there wasn't anything included in the budget for this current fiscal year.

In the past through documentation provided to the Commission, Commissioner Johnson said she noticed a great amount of bonuses and although this does not address that she encouraged the HR Director to keep an eye out on those actions so that it does not continue to occur. The employees at the lowest level don't appear to have received a fair shot at this opportunity; but the top level employees always seem to excel.

She continued by suggesting that the HR Director is cautious at the perception as well as the payful performance which the city does not have.

Mrs. Ruiz-Nicolas stated that the City Manager has been very conservative and there's nothing that goes through without his approval. In her experience within the last three (3) months, the city has been very lean as it relates to that matter.

Mayor Kelley suggested that the City Manager allow Faye Douglas of the Finance to provide the account number for this item.

Commissioner Holmes stated that he was informed that some of the created positions included in the union are not suppose to be in the union.

Mrs. Ruiz-Nicolas explained that the pay plan stemmed from what was already there and many of the positions added were placed in confidential and are classified under the Personnel Service Board but not union. She said she could not place a position in the union and probably at some point based on the number of new positions added to the classification plan there may have to a review by PERC because there are some positions that are part of the union which should not be there. However, she doesn't have that authority to take them out.

Faye Douglas of the City of Opa-locka Finance Department came forward and advised that it was not one specific account number because every employee is budgeted in their specific division.

Mayor Kelley directed the City Attorney to provide language to that affect.

Commissioner Johnson explained that she would like to have that account numbers listed on the document because some of the positions in the pay plan are vacant but there is a dollar amount. Since there's a freeze on hiring for FY 2009-2010, if the position is vacant then there shouldn't be any money coming out of the budget and it should have been reflected as a zero.

Attorney Geller advised that the information would not go into the resolution itself. In looking at the attachments there's a section "employee by classification" which is a several page memorandum and the Commission can request that a column is added listing an account number for each.

He continued by saying that it would be sufficient to direct the City Manager to provide that memorandum to the Commission; this doesn't really need to be a part of the resolution.

Commissioner Johnson directed the City Manager to provide the account numbers per employee by Friday, May 28, 2010.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

13. NEW ITEMS:

14. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

15. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE CITY'S LAND DEVELOPMENT REGULATION CODE TO PROVIDE FOR A NEW SECTION 5.14, ENTITLED "SCHOOLS"; PROVIDING FOR CONFLICTS; PROVIDING FOR SEVERABILITY

AND CODIFICATION; AND PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 4-1 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	No
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE A FIVE-YEAR INTERLOCAL AGREEMENT WITH THE MIAMI-DADE COUNTY STORMWATER UTILITY FOR CONTRACT SERVICES PERTAINING TO STORMWATER MANAGEMENT AND MAINTENANCE OF SHARED STORMWATER DRAINAGE SYSTEMS IN AN AMOUNT NOT TO EXCEED FOUR HUNDRED THIRTY ONE THOUSAND THREE HUNDRED TWO DOLLARS AND NO CENTS ($431,302.00) ANNUALLY, PAYABLE FROM ACCOUNT 43-538340; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was deferred.

3. (16-5) -A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING, SETTING FORTH AND SUBMITTING TO THE ELECTORATE PROPOSED CHARTER AMENDMENTS, AMENDING THE CHARTER OF THE CITY OF OPA-LOCKA, FLORIDA TO: 1) SET COMPENSATION FOR THE MAYOR AND CITY COMMISSIONERS, INCLUDING DEFERRED COMPENSATION; 2) CHANGE THE NAME OF THE PERSONNEL BOARD TO THE "CIVIL SERVICE BOARD"; 3) CHANGE THE NAME OF THE PERSONNEL DEPARTMENT TO THE "HUMAN RESOURCES DEPARTMENT"; 4) CHANGE THE TERM UNCLASSIFIED SERVICE EMPLOYEE TO "UNCLASSIFIED UNION EMPLOYEE"; CALLING AND PROVIDING FOR A REFERENDUM AT THE PRIMARY ELECTION TO BE HELD ON AUGUST 24, 2010 FOR THE PURPOSE OF SUBMITTING SAID CHARTER AMENDMENTS TO THE ELECTORATE AT SAID REFERENDUM; FURTHER DIRECTING THE CITY CLERK TO CAUSE A CERTIFIED COPY OF THE HEREIN RESOLUTION TO BE DELIVERED TO THE SUPERVISOR OF ELECTIONS OF MIAMI-DADE COUNTY, FLORIDA; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDNG FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above resolution was read by title by Attorney Geller.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the above resolution, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION(S):

16. ADMINISTRATION:

CONSENT AGENDA:

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DIRECT THE CITY MANAGER TO BRING BACK THE COST PURCHASE OF TWO (2) GENERATORS AND A PUMP WHICH ARE NEEDED FOR DRAINAGE AND EMERGENCIES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO PUT IN PLACE A POLICY FOR THE USE OF HAND-FREE-DEVICE FOR CELLULAR PHONES USE BY EMPLOYEES WHO OPERATE CITY OWNED VEHICLES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO AMEND THE CONTRACT OF ATLAS PACKAGING FOR THE DESIGN AND CONSTRUCTION OF PUMP STATION 14 TO EXTEND THE COMMENCEMENT DATE BY NINETY (90) DAYS AND INCREASE THE PROJECT COST BY $10,000.00; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

10. A RESOLUTION OF THE MAYOR AND CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, URGING PRESIDENT OBAMA AND DEPARTMENT OF HOMELAND SECURITY SECRETARY JANET NAPOLITANO TO PROMPTLY PAROLE INTO THE UNITED STATES ALL HAITIAN BENEFICIARIES OF

APPROVED IMMIGRANT VISA PETITIONS AND PERMIT THEM TO LEGALLY WORK IN THE UNITED STATES, AND TO EXPEDITE CONSIDERATION AND APPROVAL OF ALL PENDING BUT NOT YET APPROVED IMMIGRANT VISA PETITIONS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

11. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DIRECT THE CITY MANAGER TO CERTIFY AT EACH MEETING OF THE CITY COMMISSION THAT AT LEAST FIVE HUNDRED THOUSAND DOLLARS ($500,000.00) REMAINS IN THE CITY'S RESERVE ACCOUNTS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above consent agenda resolutions were read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the consent agenda resolutions (2, 4, 9, 10, and 11).

The motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Patterson rendered a report to the Commission relating to the following items: FPL Citywide Street Lighting (copy provided) at an additional cost to the city of $13,335.84 per year for three locations; Citywide Master Plan for replacement and installation of new sidewalks (copy provided) at a total cost of 2.2 Million Dollars; and the city's ability to purchase five police cars before the end of the current fiscal year per the request of Commissioner Holmes.

With regards to the issue with Villa Francine, he said that he would allow Gerald Lee to come forward; however, the city was able to talk to the people at Villa Francine and the structure for demolition is contaminated. This property doesn't meet the criteria for the freebie provided to him so the city would have to get someone to do it; but he doesn't want anyone to go in there and disturb the ground because the city doesn't want to assume that liability.

Gerald Lee, Acting Director for the City of Opa-locka Community Development Department came forward and stated that he did contact Mr. Brown concerning the status of the issues at Villa Francine and that's when he was advised of the pending lawsuit with the developer and the intent to include the City of Opa-locka to that list. It is his understanding that the responsibility of situation is on the developer and the city has done the due diligence it was suppose to and the Certificates of Occupancy (CO) that were

given were based on the buildings constructed. The city has reached from past administrations to assist the residents. As it stands, the Commission wanted staff to find a way to demolish the unfinished structures by means that would be a reduction to the city's budget. He said that everything else seems to be on track and a request would be coming from the Building Department about the possibility of doing the RFP to do the demolition of that building because it doesn't fit the criteria for the free demolition the city was looking for.

Mayor Kelley expressed his frustration regarding Villa Francine challenges which goes back to several administrations but as he indicated on several occasions, the staff is still the same. He said he could not understand why it has been so difficult to communicate to keep everyone informed as to what is taking place. Because he had been pushing the issue very hard going back to previous managers, not only to cut the grass but to see how the city could mitigate those unfinished structures and he asked that the city look at NSP dollars through the county which he doesn't know what happened with that.

Mr. Lee advised that this property doesn't quality for the NSP dollars.

Mayor Kelley asked, when did the city find out that the property didn't qualify for NSP Dollars?

Mr. Lee advised that in his discussions with the Building Department he found out during that week that the property didn't quality; but the information was available and that's the reason the city was pursuing the means being talked about with a pending RFP which he would expect for it to be prepared for the next meeting.

Mayor Kelley said he would have expected for that RFP to be prepared for this meeting because based on his information, the city has known that the property didn't quality for NSP since April.

Commissioner Holmes asked, should the city demolish those structures at Villa Francine would the city be held liable?

In discussions with Mr. Abia, Mr. Lee stated that it is his understanding that as long as the city doesn't disturb the ground it would be okay to demolish the building.

Of concern to Commissioner Holmes was demolishing the building without having anything in written giving the city authority to do so then they would be liable. However, if the city is permitted to demolish those buildings without disturbing the ground then an estimate should be obtained and they must have all documentation in writing including the authority given to demolish the buildings.

He suggested that city staff stop dragging their feet and get the job done the right way.

Commissioner Johnson said she was surprised to hear the city doesn't have anything in documentation. She recalled the previous City Manager stated that this was an unsafe structure by Miami-Dade County and it was going to be demolished. She directed the City Manager to go back and research the file on this matter.

Daniel Abia, Director for the City of Opa-locka Building / Public Works Departments came forward and advised that the city does have documentation. This issue did go before the Miami-Dade County Unsafe Structure Board and it was ruled that the city had the authority to demolish the building and the building qualifies as an unsafe structure.

Mayor Kelley said that the city has had meeting over at Villa Francine and the residents have come before the City Commission but what he doesn't get why the city is not further along in the process. The City Manager is new but staff is not and perhaps Mr. Abia could shed light on this.

Mr. Abia stated that the nature of the contamination on that site is complicated and the city must be very careful. He said he was full speed ahead when instructed but the same property owner threatened to sue the city because the particles would cause the children to get sick. It is now required for the city to do further abatement prior to demolishing the building. However, the recent development is that the city can demolish the building without disturbing the ground since the contamination is on the ground.

Of concern to Mayor Kelley was the fact that the information is not being related to the residents of those units because the perception is that the city is not doing anything when that's not the case.

Mr. Abia stated that the residents of Villa Francine are fully aware of the steps the city has been taking but it just doesn't satisfy their need because they have a different expectation from what the city can provide.

Vice Mayor Taylor asked, what is the expectation?

Mr. Abia advised that the expectation was to have the city join the property owners at Villa Francine join the suit against the developer of the property and the city was not in position to do that. For point of information, he said that the gentlemen recommended by Commissioner Holmes would be doing a site visit the following day and this issue may be resolved sooner than expected free of charge.

Commissioner Johnson expressed the importance of having all documentation in the files for every project.

For the record, Mr. Abia stated that there had been a significant staff change when it comes to Villa Francine because at that time Carlos Naumann was the Building Official who gave the CO to Villa Francine.

Vice Mayor Taylor stated that the Villa Francine issue is getting more convoluted every time someone comes up. She asked, from the very beginning what did the residents initially come to the city for?

From the beginning, Mr. Abia said that he would think the developer came to the city's Planning Council requesting to build.

Vice Mayor Taylor agreed with Commissioner Johnson in that everything that happens in the city should have a story from the beginning to the end so whoever picks up the book can follow the story and continue their part to have a full story of what's going on with Villa Francine. She asked, has the city called DERM to ask about the building to be demolished?

Attorney Geller advised that Miami-Dade County has a lot of arms obviously; they have their unsafe structures arm which doesn't always talk to their other arms. The unsafe structure arm can authorize the demolition but if their DERM arm says not if it's going to contaminate.

Vice Mayor Taylor asked, why does the city want to demolish the building?

Attorney Geller advised that if there's an order from the Unsafe Structures Board then the city is required to comply but there's also what is called a catch 22 when one entity in the county says "you must do this" and another entity in the county says "you may not do this".

Vice Mayor Taylor asked, what do the residents at Villa Francine want the city to do now?

Mr. Abia advised that the residents at Villa Francine want the city to demolish the unsafe portion of the structure.

Vice Mayor Taylor asked, are those residents aware of the contaminants that may be produced if this building is down?

Attorney Geller stated that if he heard Mr. Abia correctly, the residents don't want the city to tear down anything that would cause contamination but they want the city to tear down the buildings doing which may cause contamination.

Mr. Abia stated that the residents at Villa Francine have their lawyers and this is the reason why the staff has been hesitant in speaking with them because sometimes they come in with their lawyers and staff is without the City Attorney.

Attorney Geller added that the problem is that the residents are not saying that they are going to bring attorneys and if they are going to bring attorney then he is going to be there. But they schedule a meeting with staff and show up with their attorneys making legal threats. While he understood the Commission wanted to do everything possible to help these citizens, he advised that the city was placed on notice that they are going to sue; therefore, he doesn't want anyone on the dais to make an some kind of admission as to possible liability that may not be warranted under all the facts underneath this since it is moving into the legal round. This does not mean the city will not comply with legal orders from the county and it doesn't mean the city won't do everything possible to assist them that does not involve exposing all of the other citizens of the city to liability because it would be them that would have pay if there was a judgment.

Mayor Kelley directed the City Manager to keep the Commission abreast of whatever is going on with Villa Francine.

Manager Patterson provided the Commission a report on the catch basin cleaning which would take place at least two times per year. He said he would make sure to provide the Commission with a copy.

Vice Mayor Taylor thanked the City Manager for the information; however, she suggested that the Commission receive it ahead of time to allow for review. With regards to the report on the sidewalks, she noticed that NW 131st Street is on the list and that area has been a concern of hers. She asked, how is the city going to install sidewalks on NW 131st Street if there's a flood problem in that area?

Manager Patterson stated that he'd sent correspondence to the county; however, this list addresses the need for sidewalks on that street. The information provides reflects what had been done, what needs to be done and the location where new sidewalks are needed.

Because Grace Academy International came before the Commission, Vice Mayor Taylor asked, is there a misunderstanding between Grace Academy and the city?

Manager Patterson said that to his knowledge there is no misunderstanding but that may be a legal question involved relating to the ordinance for schools.

Vice Mayor Taylor stated that the way those individuals were coming up on behalf of Grace Academy International, they don't seem to know what is going on.

She continued by saying that after attending the commission meetings at Historic City Hall and walking to her car she noticed the need for lights in the courtyard because it is dark.

She further asked, are the restrooms out of order on the outside of Historic City Hall?

Daniel Abia, Director of the City of Opa-locka Public Works Department came forward and advised that those restrooms on the outside of Historic City Hall have been out of commission for quite some time.

Vice Mayor Taylor asked, are those restrooms going to be repaired?

Mr. Abia said the restrooms can be repaired; but there are other factors like the leaking roof which must first be addressed.

Commissioner Johnson asked, who was appointed to handle the employee discount program?

Manager Patterson stated that Mr. Octavian Spanner was working on the employee discount program but he is no longer here so he would reassign it to the Human Resources Director.

Commissioner Johnson stated that the resolution for the bus benches/shelters had already passed and this had been going on for years. She asked, what is the hold up with the bus benches?

Mr. Abia said Judeen Johnson of the Public Works Department attended the MPO meeting for discussion on this issue and he is waiting on a report back as to the update.

Commissioner Johnson requested to have a status report on the bus benches by the next commission meeting because this had been going on for years.

She continued by saying that she is still under the impression that if the majority of employees lived within the city's boundaries, they would have a different feel about certain issues.

She further stated that the fork on NW 27th leading to SR9 is in need of maintenance in addition to the excess water on that piece of property. She asked, who is responsible for the maintenance?

Manager Patterson said Mr. Roadrunner was responsible.

Commissioner Johnson invited Roadrunner to come forward.

Derek Jones, owner of Roadrunner Professional Services of 1020 Dunad Avenue, Opa-locka, Florida, appeared before the City Commission and stated that he had seen the City of Opa-locka Public Works Department and the inmates cutting that property. He said he was not responsible for that area.

Commissioner Johnson directed the City Manager to make sure whoever is responsible for that area gets the job done because she spoke up for that area to be beautified for the Super Bowl. The weeds have now taken over and the area looks terrible.

Manager Patterson said he was aware of the area Commissioner Johnson was referencing and he would follow up the next day to find out why the city hasn't completed the maintenance.

Commissioner Johnson also mentioned the lack of maintenance along SR9 and although she was aware of whose jurisdiction the property falls under she also knows it is a part of the city's boundaries. She looks for staff to put pressure on FDOT or whoever to make sure the maintenance is taking place.

She continued by saying that she is almost convinced that the city needs a strong mayor form of government because something is definitely wrong.

She further stated that she'd asked for recycle bins for the city departments on various occasions but to this date there is not one recycle bin in any office. She directed the City Manager to place recycle bins in all city departments.

Commissioner Johnson expressed her contentment with the clean up and suggested that the Public Works Department continue with it because the city's branding is of utmost important to her as well as the citizens. She informed the Commission that she had asked the City Manager to go on a tour of the city to show him what she'd seen in the eight years.

As it relates to the business owners, she said the city has legislation on the books for the exterior upkeep of commercial properties but it is not being enforced. Some of the business facilities look pathetic and this should be addressed. There is legislation on the books to make this city look better and the citizens deserve more.

She further stated that she was convinced that if city staff lived in the city it would be better. In addition to that, she is of the opinion that the city needs a strong mayor form a government.

Vice Mayor Taylor stated that she previously asked about the water collected at the Garden Apartments and the response was that this was a retention pond permitted by the Building Department to assist in flood management of this property site and no citation was issued for this permitted use. She asked for further clarification on the response provided because she doesn't know what a retention pond is and if it is so, the retention pond is not fenced in away from the children. The pond is also a home for mosquitoes and it never gets empty. She directed the City Manager to direct staff to go back to the area and separate that retention pond from the children in that area.

Mayor Kelley suggested that the City Manager allow Mr. Abia to come forward and address the purpose of the retention pond because even before the Vice Mayor mentioned it, he noticed it when he was in the area for the gun buy back and he had mentioned it to staff about the fencing.

Daniel Abia, Director of the City of Opa-locka Public Works / Building Department came forward and said he would have to do a site visit on that particular retention pond and get back with the Commission. The response to Vice Mayor Taylor's concern was provided by a member of his staff and he needs to confirm that it is a drainage pond and look at how it could be separated from the children.

Commissioner Tydus informed the City Manager that the abandoned motel across from the train station has become a home for vagrants and the homeless. In addition to that she said she noticed an excess amount of trash tucked away in certain areas and it needs to be cleaned up.

She further stated that she is still scheduled to meet with the perspective funding sources with regards to the traffic roundabouts and she needs the feasibility and cost analysis by May 27, 2010. This issue was mentioned at the last commission meeting.

In looking at the City Manager's response regarding the fence on Wilmington Street near the lake, Commissioner Holmes said he visited the area and those people were having a party on the jet skis. He hasn't seen any "no trespassing" signs erected and he even

suggested having the police write up citations. Those individuals are out there every weekend and the city must make an effort to put a stop to it before someone gets hurts.

He continued by saying that he'd asked the City Manager to look at giving the citizens an additional relief on the water bills because he is still receiving a large number of complaints due to high water bills. He suggested the City Manager look into giving a additional 2,000 gallons consumption while maintaining the current rate and bringing it back to the Commission.

He further advised the City Manager of the bad water leaks on Cairo Lane and on Opa-locka Boulevard. He suggested that the City Manager follow up with Code Enforcement for the location of the leaks and provide a response as to why the water leaks haven't been repaired.

Commissioner Holmes directed the City Manager to send Code Enforcement to the NW 22nd Avenue Apartments to address the air conditioning wall units due to the poor condition of the windows before someone gets hurt.

Mayor Kelley thanked Kathy Phillips of the City Manager's Office because he tends to email her about a lot of the same concerns brought up. He stated that Mr. Patterson is the City Manager, the Commission sets policy and at least half of the concerns mentioned by the Commission either through the book or asked in meetings should have been done before now. The City Manager should not be at the point of trying to find out or ask and every staff person who needs to be at the meetings from now on should be at the meetings. He said he didn't like coming to the meetings having to spend 30 to 40 minutes on items that should have already been addressed.

He continued by saying that there are so many individual concerns he could point out even in the book provided to the Commission right down from the one Commissioner Holmes just mentioned on Wilmington Street with the jet skis because if somebody drowns, it's going to be Opa-locka. The weed zone in the area Commissioner Johnson mentioned he has seen as well; therefore, somebody had to see it and then to have the vendor come up and say it's not his responsibility but the city's own. If the city is cutting and maintaining that property then they should do a better job. This Commission made it clear a few months ago that they wanted SR9 cleaned and the city was entering into an agreement with CSX to clean it and it's still not clean. The Commission is not talking for their health. The same thing with the retention pond that he brought to the attention even before the Vice Mayor; however, she made it public and it was in the book and the water is still there with no fence. If a child drowns in that pond then the question becomes "why was that water there". There is no reason for a lot of these concerns not being addressed because staff is aware and for whatever their reasoning move very slow. However, it stops with the City Manager so the Commission will deal with him. As far as he's concerned, he suggested that the City Manager tightened up and make staff understand that when the Commission sets policy or ask for certain things to be done, it should be done in a timely manner and get back to them. He said he was the one who asked for the sidewalks and lighting and then to receive the information at the last minute. Also, there's no way the city should be missing line items and the Commission has to ask staff up for

account numbers. This should not occur and if it continues to occur, the Commission only has one person to deal with and that's the City Manager.

Commissioner Holmes announced the funeral arrangements for Chief Cheryl Cason's late husband Arthur Lee Cason.

B. ACCOUNTS PAYABLE:

Shirley Freeman, Administrative Assistant for the City of Opa-locka Finance Department came forward and advised that the Commission should have in their package the following reports: Cash Requirements Report, Accounts Receivable Report as of May 19, 2010, Revenue Audit Detail Report, and the Expenditure Audit Detail Report. In addition, the city is paying its bills on time.

Commissioner Johnson suggested Ms. Freeman inform the Finance Director of the legislation adopted to certify at each meeting that at least $500,000.00 remains in the city's reserve accounts.

17. OFFICIAL BOARD REPORTS:

18. CITY ATTORNEY'S REPORT:

Attorney Geller reported his attendance at the Community Relations, Recreation & Activities Advisory Board Meeting.

He continued by saying that the city is not taking any action whatsoever in regard to Grace Academy International. He said his understanding is that they are tenants of the Archdiocese who owns the property. The Archdiocese has been trying to sell it and they believe they have a buyer. The buyer is someone who will develop the property with the hopes of making it into a charter school. He said he didn't know what the details of the purchase was but he did approach the representative from Grace Academy and told them that he had other dealings with the Archdiocese who have been trying to sell a lot of properties. In an effort to be helpful, he suggested since they were existing tenants of the Archdiocese that they speak to them and find out if there was other nearby property.

He further stated that he understood how the people felt about Grace Academy but the city has to have an ordinance and if that property gets approved that's a completely separate question. The Commission is not approving that school because they would have to apply and go through the Planning Council and then the City Commission. It would be his pleasure to meet with the members of the Commission individually to discuss the ordinance before second reading. The toughest ordinance the city would have on its books in the whole Land Development Code as far as giving the Commission the tools to decide what a good application is and what a bad application is. Should the Commission feel something is not the right thing and the right place, they will have more tools to help make that decision and still not get the City of Opa-locka sued.

After hearing the dialogue from citizens, Commissioner Johnson said it appeared in the legislation passed that the Commission gave special exception.

Attorney Geller stated that the city is requiring that it be a special exception and no school can be approved by right and by requiring it to be a special exception, it's something that is entirely discretionary with the Commission. The reason to make it a special exception is not to make it easier for them but to make it tougher.

Commissioner Johnson stated that she'd never receive literature from any school but she did receive a post card from the charter school saying it's the future home with the picture and location of the property. This gave her the perception that this has already been approved.

Attorney Geller advised that the city does need the ordinance; however, he believes the school is optimist and they may be entitled to be. The ordinance does require that there is an application, goes to the Planning Council and before the City Commission who will be granted with very broad discretion and tools to assist in deciding between good and bad applications.

He formerly introduced an attorney from his office, Attorney William Kramer who would be working with him for the City of Opa-locka.

Attorney William Kramer came forward and expressed his appreciation for the opportunity in working with the City of Opa-locka.

Attorney Geller reported that the county has legislation in terms of jet skis and he would make it his business to sit with the Chief of Police to make sure there's enforcement on the jet skis. In addition to that, the county's curfew ordinance was amended and there were some problems with the original curfew ordinance but they've gone and fixed them. If this is something the Commission thinks needs to be enforced in Opa-locka then they can talk to the City Manager about that or vote to direct the City Manager he would certainly be happy to draft a resolution as to enforcement. However, the city doesn't need an ordinance; the county's ordinance is the law.

Commissioner Johnson asked that the City Attorney look into the curfew because while attending Teen Court a couple of the officers indicated that they've never heard of the curfew.

Attorney Geller advised that the ordinance is out there for the Commission to direct through the City Manager the police force to begin enforcing it.

He continued by reporting that he's been in touch with the representatives for the Georgia Ayers matter and they've decided to ask the Commission to move forward on the suggestion worked out with the Department of Community Affairs while the city's EAR amendments are still being worked on by FIU. The representatives are planning to come before the Commission at the next meeting and ask the Commission to assist them in moving forward by adopting an overlay which is a special zoning district that allows an increase in density for purpose of affordable housing in addition to some technical amendments pertaining to public school sighting.

Commissioner Johnson suggested that the City Attorney met with the members of the Commission individually relating to the Georgia Ayers matter because this may require some dialogue that shouldn't be discussed openly.

Attorney Geller informed the Commission that the city is tentatively set for mediation on the two cases involving the Flea Market for June 3, 2010. He said he was very hopeful to resolve both of the issues including getting some money the city was owed for a very long time.

Additionally, the city is tentatively scheduled on June 4, 2010 for the final bargaining session with PBA.

Commissioner Johnson directed the City Attorney to follow up on legislation passed in 2006 pertaining to a collection agency because it appears there is 1.9 Million Dollars owed to the city for outstanding penalties.

Attorney Geller advised that his partner is looking at what the city could do to enforce liens and he thinks a new ordinance is needed.

Commissioner Johnson suggested that the City Attorney bring back a report on enforcing liens in addition to whatever legislation is needed of which she would be a co-sponsor.

She continued by saying that she mentioned at the last meeting she wanted to sponsor the legislation prohibiting telecommunication towers in the city because she is concerned about the safety of the citizens. She directed the City Attorney to bring it back at the next meeting.

She further suggested putting up a fence in addition to the "no trespassing" signs near the lake to block the entry.

Mayor Kelley asked for an update on the trains and the issue with the whistle blowing.

Attorney Geller stated that there are other issues pending with CSX the City Manager is communicating and before finalizing those issues he would address the noise from the trains. He said he would hope to have something by the next meeting but he doesn't want to promise it.

Commissioner Johnson directed the City Attorney to speak with the airport regarding the airplanes flying over Opa-locka late nights. In addition to that, the airplanes are letting out gas.

19. CITY CLERK'S REPORT:

Vice Mayor Taylor asked, did the city's percentage increase with the Census?

Clerk Irby advised that the recruiters are now out in full force and she won't have anything concrete until November or December.

Commissioner Johnson asked, is there sufficient time to place the proposed charter amendments on the August 2010 ballot?

Clerk Irby replied, yes.

Commissioner Holmes directed the City Clerk to pull the legislation passed years ago pertaining to the telecommunication towers.

20. MAYOR/COMMISSION REPORT:

Commissioner Johnson reported on her partnership with the University of Miami Mobile Medical Clinic on June 8, 2010 at Historic City Hall to provide free health screening.

She continued by requesting that the City Manager get the city's youth involved in the Average Breaker's Club through the Parks & Recreation Department.

She thanked the Community Empowerment Team for coming to Nathan B. Young Elementary and sharing information with the citizens.

She proudly announced that all third graders at Robert B. Ingram Elementary passed the FCAT. She expressed the importance of educating the youth in Opa-locka.

Commissioner Holmes reminded Mr. Geller to draft a resolution for a proposed charter amendment to Section 38 of the charter.

Mayor Kelley reminded everyone of the funeral arrangement for the late Arthur Cason, husband of Chief of Police Cheryl Cason.

He thanked Dr. Orji for the presentation of the bond financing at the Town Hall Meeting held on Tuesday, May 25, 2010. This issue must be fast forwarded due to rate changes.

He announced that the city's new and improved website is up and running and he would like to do something to make sure everyone is aware. He said he would get with the City Manager to see how they can go about that with the IT Department and Ms. Gordon.

He further announced the Legislative Town Hall Forum scheduled for June 16, 2010 @ 6:30 p.m. on the 2nd Floor of Town Center with Representative Braynon.

21. OFFICIAL BOARD APPOINTMENTS:

22. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 10:00 p.m.

MAYOR

ATTEST:

CITY CLERK